

## **Brackenridge Civil Group Inc**

www.brackenridgecivil.com

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June 12, 2005

James Skinner, General Manager, Evans-Lee

Dear Mr. Skinner:

This letter sets the terms on which this office will perform the Roadway Widening Study for Evans-Lee. It is a fixed-fee study with a defined scope and a set schedule. Read it. If it states the work correctly, sign both copies and return one to this office. On receipt it becomes our agreement, and we will proceed.

### **Scope of the Study**

We will study the widening of the roadway that serves the Evans-Lee site and report what the widening requires. The study covers the existing roadway and its right-of-way, the traffic the widened section must carry, the geometry of the widened section, the drainage the widening affects, and the utilities in its path. We will identify the conflicts, size the improvements in concept, and set out what each option costs. We will not prepare construction drawings under this agreement. Construction drawings follow the study, under a separate agreement, if you elect to build.

### **How We Will Proceed**

We begin with the existing conditions. We compile the survey, the right-of-way records, and the utility records, and we walk the roadway to confirm what the records show. From that base we set the design controls: the design speed, the lane and shoulder widths, and the sight distance the widened section must meet. We then develop the widening options that fit those controls, test each against the drainage and the utilities, and carry the workable options to a concept-level cost. The study closes with a written report and a recommendation.

### **Information We Rely On**

Our study rests on the survey, the right-of-way records, and the utility records furnished to us or drawn from the public record. We will check that information for internal consistency, but we are entitled to rely on it, and we are not responsible for errors it carries. If the site plan or the record information changes after we begin, the change may move the findings, the schedule, and the fee. We will tell you the effect before we act on it.

## **The Report**

The study delivers a written report. The report states the existing conditions, the design controls, the widening options we tested, and the recommendation among them, and it carries a concept-level opinion of probable construction cost for the recommended option. The report is prepared for your use in deciding whether and how to advance to design. It is a study, not a construction document, and it does not authorize construction.

## **The Team**

Linda George, Project Engineer, will lead the study and set the roadway geometry and the grading. Jeffrey Perez, Design Technician, will prepare the base sheets and the exhibits and check the utility records against the corridor. I will review the work and seal the report. Direct the day-to-day questions to Linda George. Direct questions on scope, fee, or these terms to me.

## **Fee and Commencement**

Our fee for the study is a fixed sum of \$112,500. The fee covers the work described above, the report, and the recommendation. We will begin on June 22, 2005. The study runs about four months from that point, provided the survey and the record information reach us when the work needs them. Work outside this scope, including construction drawings, options beyond those we agree to study, or attendance at public hearings, proceeds only on your written authorization, and we will quote its cost before we take it up.

## **Billing and Payment**

We invoice monthly, for the share of the work completed in the month. Each invoice is due within thirty days of its date. Reimbursable expenses, including reproduction, record fees, and delivery, are billed at cost and are additional to the fee. If an invoice stands unpaid for sixty days, we may suspend the work until it is paid. We will give you written notice before we suspend, and a suspension extends the schedule by its own length.

## **Term and Termination**

This agreement takes effect on the day the work begins and runs until we deliver the report and the recommendation. Either party may end it on ten days' written notice. If you end it, you pay for the work performed and the expenses incurred through the date it ends. The report, the exhibits, and the files we prepare are our instruments of service and remain ours. On payment in full, you may use them for this project.

## **Confidential Information**

We will hold the site information, the development plans, and the figures you give us in confidence, and we will use them only for this study. We may disclose what a public agency requires for its review of the work and what the law compels. This obligation outlasts the study.

## **Limit of Liability**

We will perform this study with the care and skill that civil engineers in this locality ordinarily use at this time. We give no other warranty, express or implied. Our total liability to Evans-Lee for any claim arising out of this work, whether in contract or in tort, is limited to the fee paid under this agreement. We are not responsible for the means or the safety of any construction that may follow, nor for the acts of contractors or others not under our direct control.

## **Governing Law**

The laws of the state in which the roadway lies govern this agreement. A dispute under it that we cannot settle between us goes to the courts of that state.

## **To Proceed**

If these terms are correct, sign both copies where indicated and return one to this office. We will then schedule the study to begin on the date stated above. If any term needs discussion, telephone me and we will settle it before the work starts.

Sincerely,

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**Mark Todd**

Principal Engineer

Date: June 12, 2005

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**James Skinner**

General Manager, Evans-Lee

Date: June 12, 2005